

Addendum to 52.212-1

Instructions for Submission of Quotes

1. General Instructions

The Government intends to award a Firm Fixed-Price (FFP) contract for this requirement based on the **Lowest Price Technically Approved Product** in accordance with RFO 12. Quotes that do not meet the required technical or delivery requirements will be determined "Unacceptable" and will not be considered for award.

Quoters shall include all documents and information in accordance with the instructions herein. Noncompliance with the Request for Quote (RFQ) requirements may hamper the Government's ability to properly evaluate the quote and may result in elimination from further consideration. Quoters are cautioned to follow the instructions carefully and are encouraged to present their best technical quote and prices in their initial submission. The Government intends to evaluate quotes and award a contract without discussions; however, exchanges may be conducted at the discretion of the Contracting Officer (KO).

Quotes must be self-sufficient and respond directly to the requirements of this solicitation. If a Quoter believes the requirements in these instructions contain an error, ambiguity, or omission, the Quoter shall immediately notify the KO in writing with supporting rationale.

2. Requirement Clauses and Provisions

The Quoter must complete and submit with their quote the following representations, certifications, and clauses, as appropriate:

Clause/Provision	Title / Description	Applicability
FAR 52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction Under Any Federal Law	All Quoters
FAR 52.229-11	Tax on Certain Foreign Procurements--Notice and Representation	Foreign registered SAM vendors (W-14 template attached)
DFARS 252.204-7016	Covered Defense Telecommunications Equipment or Services	All Quoters
DFARS 252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services – Representation	All Quoters
DFARS 252.211-7003	Item Unique Identification and Valuation	All Quoters
DFARS 252.225-7020	Trade Agreements Certificate	All Quoters
DFARS 252.229-7001	Tax Relief	Foreign registered SAM.gov vendors (except German registered)
DFARS 252.229-7001, Alt. I	Tax Relief	German registered SAM.gov vendors only

Note: For provisions completed electronically via the System for Award Management (SAM) annual representations and certifications, the KO will review the online information instead of requiring manual submission, provided the Quoter verifies the SAM data is current, accurate, and complete within the last 12 months. Any exceptions or manual updates must be explicitly submitted with the quote.

3. Language and Formatting

All quotes, questions, and correspondence shall be submitted in the **English language**. Quotes submitted in a language other than English will be determined "Unacceptable" and will not be evaluated. Quoters may submit certified English translations of native-language documents, manuals, and/or product literature.

4. System for Award Management (SAM)

To be considered for award, prospective Quoters must be actively registered in SAM (www.sam.gov) by the date quotes are due.

5. Submission Information & Points of Contact

The Quoter is responsible for ensuring the Government's receipt of its quote. **No late submissions will be accepted.** Block 8 of this solicitation provides the due date and time for quotes. Local time is Central European Time (CET).

Point of Contact	Role	Email Address
Mr. Dion Benton	Contracting Specialist	dion.d.benton.civ@army.mil
Mr. Brandon Donalson	Contracting Officer	brandon.m.donalson.civ@army.mil

- Format: Submissions must be via email in Microsoft Word, Excel, or Adobe Acrobat (PDF) formats. WINZIP (.zip) files are routinely blocked by the firewall and will NOT be accepted.
- Multiple Emails: Quotes sent across multiple emails must be numbered sequentially (e.g., "Email 1 of 3").
- Anonymization Rules: Company identifying information (name and logo) must be strictly limited to the cover page of each submitted section (including technical submittals and schedules). Failure to adhere may render the quote unacceptable.
- Pricing Files: Microsoft Excel files must be unlocked and formula-driven. Numbers shall not be hard-coded where formulas are applicable.

6. Questions

Questions must be submitted to the POCs listed above no later than **seven (7) days** prior to the solicitation close date. Questions must cite the specific solicitation element to which they pertain.

7. Delivery Terms & Acceptance Period

- Terms: FOB Destination OCONUS. The contractor must deliver the goods on its conveyance at the destination; the contractor is responsible for shipping costs and risk of loss prior to actual delivery.
- Address: U.S. Embassy Kyiv, Ukraine (Exact POC and details provided at award).
- Delivery Date: No later than 90 days after contract award.
- Acceptance Period: **Quoted prices must remain firm for 60 calendar days** from the quote receipt deadline.

8. Price Submission

The Government intends to award one contract. Quoters shall submit pricing that is consistent with and supports the line items of the Standard Form (SF) 1449 provided in this solicitation.

9. Submission Requirements for Technically Approved Product

. The Government will review all quotation submissions for compliance with the requirements listed below. Any quoter that fails to provide the required items may be deemed noncompliant and may not be considered for further evaluation. Ensure the following subfactors are thoroughly addressed:

Subfactor	Required Documentation / Actions for Submission
1: Technical Specifications	Provide product literature, data sheets, and/or images demonstrating the quoted product strictly conforms to Attachment 1: Medical Supplies Technical Specifications. Product Data Sheets are highly encouraged.
2: Capability Statement	Submit a detailed capability statement that explicitly provides all of the following: 1. Quoter POC Names and Phone Numbers. 2. Affirmative statement of capability to deliver to U.S. Embassy Kyiv, Ukraine within 90 calendar days. 3. At least one (1) contract reference from the past ten (10) years for supplying medical supplies or similar items. 4. Teaming/Subcontracting Statement: An affirmative statement that the Quoter will perform 100% of the work as the prime contractor -OR- a comprehensive list of all proposed subcontractors (including legal name, address, POC, narrative of duties, and a signed Letter of Intent on official letterhead).

10. Supplier Performance Risk System (SPRS)

Quoters must submit their CAGE code in Block 17a of SF 1449. The Government will use this to access SPRS information. Quoters must also provide identifying numbers (NSN, IBSN, UPC, GS1, or Manufacturer CAGE/Part Numbers) for each end product to assess price and item risk.

(End of Addendum 52.212-1)

Addendum to 52.212-2

Evaluation of Quotes: Commercial Products and Commercial Services

1. Basis for Award

In accordance with RFO 12.203, the Government will evaluate all quotes based on the criteria specified in this addendum. The Government will award a single contract to the Quoter whose submission conforms to this solicitation and is evaluated as the **Lowest Price Technically Approved Product**, incorporating SPRS risk assessments.

2. Factor 1: Technically Approved Product

The quote must meet the technical requirements outlined in Attachment 1 and the submission instructions in 52.212-1. All subfactors are evaluated on a strict Acceptable/Unacceptable basis. Quotes failing to meet the criteria for any subfactor may be determined "Unacceptable" and eliminated from consideration.

Subfactor	Acceptable/ Unacceptable Criteria
1: Technical Specifications	ACCEPTABLE: The submitted product literature and data sheets clearly demonstrate the quoted product meets or exceeds all requirements in Attachment 1: Medical Supplies Technical Specifications. Information is consistent across all provided files.
	UNACCEPTABLE: The submitted documentation fails to demonstrate compliance with Attachment 1, is contradictory, or is missing required data.
2: Capability Statement	ACCEPTABLE: The Capability Statement explicitly includes: • an active CAGE code; • Quoter POCs; • a 90-day delivery commitment to Kyiv,Ukraine; • valid past performance (1 contract within 10 years); • and a clear prime contractor affirmation OR complete subcontractor documentation (including Letters of Intent).
	UNACCEPTABLE: The Capability Statement is missing one or more of the mandatory elements requested in 52.212-1, or the provided proof is insufficient/invalid.

3. Factor 2: Supplier Performance Risk System (SPRS)

The Government will consider risk in accordance with DFARS 252.204-7024. Supplier risk and item price risk will be assessed using SPRS. Any Quoter concerns regarding SPRS assessments should be addressed per paragraph (d) of the cited provision.

SPRS Rating	Definition
Acceptable	Quoter has a Supplier Risk Score and Item Price Risk Score of Green, Purple, Blue, Black, or "Unknown" (no information found in SPRS).
Unacceptable	Quoter has a Supplier Risk Score and Item Price Risk Score of Yellow, Red, or Grey.

Note: A Quoter will not be evaluated favorably or unfavorably if no SPRS rating information is found. "Unknown" risk is considered "Acceptable."

4. Factor 3: Lowest Price

Price submissions will be reviewed for completeness and compliance with 52.212-1. Incomplete price submissions may be rejected without evaluation.

- Evaluation Method: Price will not be numerically scored. The Government will evaluate the *reasonableness* of the quoted prices (realism will not be evaluated). Adequate price competition normally establishes a fair and reasonable price.
- Total Evaluated Price (TEP): TEP is calculated by adding all priced Contract Line Item Numbers (CLINs) and Subcontract Line Item Numbers (SLINs), including all optional CLIN/SLINs. *Note: Evaluation of options does not obligate the Government to exercise those options.*
- Taxes: Prices shall exclude taxes and duties from which the U.S. Government is exempt (per DFARS 252.229-7001, Alt I; 252.229-7003; and 252.229-7012).
- Item Price Risk: SPRS will be queried to compare quoted prices against historical prices for similar products. If a Quoter's TEP is evaluated as unreasonably high or low based on the SPRS price risk analysis, the quote may be removed from consideration.

(End of Addendum 52.212-2)